

CV-23-002171 MILES, JACOB AARON vs HUIZAR, RAFAEL, Jr – Defendant Truc Than Ly, EI & EI Wood Products Corp., and Metrie EI & EI LLC's Motion for Summary Judgment and Alternatively Motion for Summary Adjudication – SUMMARY JUDGMENT GRANTED.

County: stanislaus

Division: Civil Law and Motion

Department: 23

Hearing date: 2026-08-03

Motion: The Court finds that Defendants, as the moving parties, have carried the initial burden of demonstrating entitlement to judgment pursuant to the application of the "sudden emergency," or "imminent peril" doctrine herein. Specifically, the documentary, deposition, and video evidence submitted herein supports the conclusion that Defendant Truc, acting with reasonable care, was suddenly and unexpectedly confronted by an emergency he did not cause. (Shiver v. Laramie (2018) 24 Cal.App.5th 395, 397.) The burden then shifts to Plaintiff to submit admissible evidence demonstrating the existence of a material factual dispute preventing judgment as a matter of law. Plaintiff has failed to carry that burden, as his responsive evidence gives rise to no more than mere speculation, cannot be regarded as substantial, and is insufficient to establish a triable issue of material fact. (See, e.g., Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 162–163.)

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